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March 16, 2026

Amy Strauss, Acting Director
Federal Maritime Commission
Bureau of Trade Analysis
800 North Capitol Street, N.W.
Washington, D.C. 20573
tradeanalysis@fmc.gov

Re: Request for Special Permission to Implement Emergency War Risk Surcharge

Dear Acting Director Strauss:

We write on behalf of Turkon Container Transportation & Shipping, Inc. (“Turkon”) to request special permission pursuant to 46 C.F.R. § 520.14 to implement an emergency war risk surcharge on all shipments from/to or via the Persian/Arabian Gulf/Red Sea and adjacent waters (including ports in Iraq, Bahrain, Kuwait, Yemen, Qatar, Oman, United Arab Emirates, Saudia Arabia, Pakistan, Jordan, Egypt, Djibouti, Sudan, and Eritrea) (the “Affected Region”) and U.S. ports effective immediately upon publication in order to continue service in the Affective Region. The surcharges were published in Turkon’s tariff on March 16, 2026. For the reasons described below, there is good cause for imposition of this charge on less than 30 days’ notice.

As the conflict in Iran and across the Persian/Arabian Gulf escalates, Turkon intends to continue to serve its customers by making continued port calls to the Affected Region as long as possible. However, Turkon’s underwriters are imposing war risk premiums for these port calls effective immediately. Turkon has been advised that the war risk premium required will be re-evaluated every 24 hours and may be adjusted each 24 hours as the conflict escalates further.

The war risk premiums now being imposed on Turkon’s vessels for port calls in the Affected Region are substantial. At this time, reports indicate that the conflict with Iran will continue for some time and is expected to worsen. As a result, Turkon will be required to pay significant war risk premiums for calls in the Affected Region for the foreseeable future. Turkon would like to offset some of this additional cost by implementing a war risk surcharge as soon as possible. The war risk surcharge will recoup a portion of the war risk premium being paid by Turkon for each port call in the Affected Region. Turkon will not in any way make any profit on the war risk surcharge. Without ability to recoup at least a portion of the war risk premium, Turkon may not be able to continue to serve ports in the Affected Region.

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The surcharge will be set forth in Turkon's tariff, Rule 10.39, Tariff No. 1, Org. No. 014782, as follows:

USD 2,000 per 20' container

USD 3,000 per 40' container

USD 3,500 per 40' reefer & special type containers

Accordingly, Turkon respectfully requests that FMC expeditiously grant special permission to implement the above surcharge effective immediately upon publication. If you have any questions or require additional information, please do not hesitate to contact me.

Sincerely,



Dana S. Merkel